

		a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.” (<i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (cleaned up).) Defendants have submitted sufficient evidence to overcome the initial low burden of proving the existence of an agreement to arbitrate by attaching the agreement to arbitrate to Morris’s declaration. Thus, the burden shifts to Plaintiff to contest the agreement’s existence, usually through disputing the alleged signature. Plaintiff instead challenges the semantics of the label of his hiring status at the time of the alleged signing. This is insufficient to create a factual dispute of the agreement’s existence. Plaintiff would need some employment agreement with the newly formed entity to be an employee of that entity and to make any employment claims against that entity. Importantly, Plaintiff does not dispute signing the agreement. (Ortiz-Garcia Decl., ¶¶ 2-8.) Thus, Plaintiff has not sufficiently challenged the existence of the agreement. Additionally, Plaintiff cannot both claim Defendants are not his employer for the purposes of this Motion and also claim they are liable for his employment claims as his employer for the purposes of his Complaint. Even if the Court were to entertain this contradiction, Plaintiff would be estopped from asserting Defendants could not compel arbitration. (See <i>JSM Tuscany, LLC v. Superior Ct.</i> (2011) 193 Cal.App.4th 1222, 1239.) Finally, Plaintiff has failed to demonstrate any substantive unconscionability as a defense to enforcement. Procedural and substantive unconscionability “must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (<i>Armendariz v. Foundation Health Psychcare Servs., Inc.</i> (2000) 24 Cal.4th 83, 114.) “The party resisting arbitration bears the burden of proving unconscionability.” (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 247.) Accordingly, Defendants’ Motion is granted.
12	25-01506551 Ramirez vs. Essex Property Trust	Motion to Substitute Successor Plaintiffs’ motion to substitute Alicia Perez as successor in interest to deceased plaintiff Jonathan Paul Ramirez is CONTINUED to ____. “A pending action or proceeding does not abate by the death of a party if the cause of action survives.” (Code Civ. Proc. §377.21.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc. §377.31.)

		Code of Civil Procedure section 377.32 provides the procedural requirements for a successor in interest to substitute in as plaintiff. Subdivision (a) of section 377.32 requires that a person who seeks to continue a pending action as the decedent's successor in interest execute and file an affidavit or a declaration under penalty of perjury. Although the Notice of Motion states that a Declaration of Alicia Perez is being filed, no such declaration was filed with the court. (Notice, p. 2, ln. 9.) The hearing on the Motion is continued to allow Alicia Perez to submit a declaration which complies with the requirements set forth in Code of Civil Procedure Section 377.32. Alicia Perez may file and serve a declaration no later than 9 court days prior to the continued hearing. Plaintiffs to give notice.
13	25-01466414 <i>Seeds vs. General Motors, LLC</i>	Motion to Be Relieved as Counsel of Record Strategic Legal Practices, APC to withdraw as attorney of record for plaintiff Gary N. Seeds is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.